

// PARTICIPANT AGREEMENT

Liability Waiver, Release, and Assumption of Risk

Read carefully before signing. This is a legally binding document.

1. ACTIVITIES COVERED

This waiver applies to all training, conditioning, sports performance, group, private, and family sessions conducted by The LAB 909, its coaches, contractors, agents, and at any facility, off-site location, or event organized by The LAB 909.

2. ACKNOWLEDGMENT OF RISK

I understand that strength training, sprint and agility work, plyometrics, Olympic lifting, conditioning, and sports performance training involve real risk of injury — including but not limited to muscle strains, sprains, fractures, concussions, dental injuries, heart events, heat illness, and in rare cases, permanent disability or death. I voluntarily assume these risks.

3. MEDICAL CLEARANCE

I represent that I am physically able to participate, am not aware of any medical condition that would make participation unsafe, and have consulted a physician if needed. I will inform my coach of any injury, illness, surgery, pregnancy, medication, or condition that may affect my training, and update them if anything changes.

4. RELEASE OF CLAIMS

To the maximum extent allowed by California law, I release, waive, and discharge The LAB 909, its owners, employees, coaches, contractors, sponsors, and the owners of any premises used (collectively, “Released Parties”) from any and all claims, demands, or causes of action arising out of or related to my participation, including those caused by ordinary negligence. This release does not apply to gross negligence, willful misconduct, or anything that cannot be released by law.

5. PHOTO, VIDEO, AUDIO, LIKENESS AND PUBLICITY RELEASE (MANDATORY)

By signing this Agreement, I irrevocably and unconditionally grant to The LAB 909 and its owners, employees, coaches, contractors, successors, assigns, licensees, sponsors, partners, and anyone authorized by The LAB 909 (collectively, “Released Parties”) the perpetual, worldwide, royalty-free, fully paid-up, sublicensable, transferable, and irrevocable right and license to photograph, film, audio-record, video-record, livestream, and otherwise capture and reproduce my (and, if a minor, my child's) name, voice, likeness, image, photograph, video, performance, statements, biographical information, signature, and any other identifying attributes (collectively, “My Likeness”) before, during, and after any session, event, or visit to any LAB 909 facility or related premises. I further grant the unrestricted right to edit, alter, modify, copy, exhibit, publish, distribute, display, perform, broadcast, and create derivative works from My Likeness, in whole or in part, alone or in combination with any other content, in any and all media now known or hereafter invented (including without limitation print, television, film, internet, social media, streaming, podcasts, mobile applications, virtual reality, the metaverse, AI training data, advertising, signage, packaging, and merchandise), in any and all markets and territories, throughout the universe, in perpetuity, for any purpose whatsoever — commercial, promotional, editorial, educational, or otherwise — without further notice, approval, compensation, royalty, attribution, or accounting to me.

I acknowledge that I will **not** receive any payment, residual, royalty, profit share, or other consideration of any kind for any current or future use of My Likeness, and that the access to training, coaching, and the LAB 909 facility itself is full

and adequate consideration for this release. I waive any right to inspect, review, or approve any photograph, recording, edit, caption, or finished product before publication.

I irrevocably and forever release, waive, and discharge the Released Parties from any and all claims, damages, demands, liabilities, losses, costs, fees (including attorneys' fees), and causes of action of any kind, whether known or unknown, existing now or arising in the future, that I, my heirs, my estate, my assigns, or anyone acting on my behalf may have against the Released Parties arising out of or relating to the capture, use, reuse, modification, or distribution of My Likeness — including without limitation any claim for invasion of privacy, intrusion, public disclosure of private facts, false light, defamation, libel, slander, infliction of emotional distress, copyright infringement, right of publicity (including under California Civil Code § 3344 and any common-law right of publicity), trademark, unfair competition, misappropriation, blurring, unauthorized commercial use, breach of contract, negligence, or any other legal or equitable theory — even if such claim is caused in whole or in part by the Released Parties' own negligence. To the maximum extent permitted by law, I expressly waive the protections of California Civil Code § 1542, which provides: "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."

I further waive and disclaim any moral rights, droit moral, attribution rights, integrity rights, or similar rights I may have in My Likeness or any work incorporating it. To the extent any such right cannot be waived, I covenant not to assert it.

I represent and warrant that I am the sole owner of all rights in My Likeness, that I have the full legal authority to grant this release (and, if signing on behalf of a minor, that I am the parent or legal guardian with full authority to bind the minor and the minor's estate), and that no third party's consent is required. I agree to indemnify, defend, and hold harmless the Released Parties from any claim, demand, loss, or expense (including attorneys' fees) arising out of any breach of this representation.

This Section 5 is mandatory. It is a material condition of my participation in any LAB 909 program, training, or event. I cannot opt out of this Section 5 while continuing to participate. This release is irrevocable and perpetual. It survives the termination of any membership, booking, employment, or relationship with The LAB 909 and is binding on me, my heirs, my estate, my executors, my administrators, my successors, and my assigns.

6. DISPUTE RESOLUTION — ARBITRATION

Any dispute arising out of this waiver or my participation will be resolved by binding arbitration in San Bernardino County, California, under JAMS rules. I waive the right to a jury trial and to participate in any class action.

7. MINOR PARTICIPANTS

If the participant is under 18, the parent or legal guardian agrees to all of the above on the minor's behalf and represents they have legal authority to do so.

8. SEVERABILITY AND GOVERNING LAW

If any portion of this waiver is held unenforceable, the remainder stays in effect. This waiver is governed by California law.

PARTICIPANT INFORMATION

Full name

Date of birth

Phone

Email

Emergency contact

Emergency phone

Signature

Date

**Parent/Guardian (if
minor)**

Date
